

Universal Brotherhood Co-Op vs Delhi Development Authority on 15 January, 2013

NATIONAL
CONSUMER DISPUTES REDRESSAL COMMISSION NEW DELHI

FIRST APPEAL NO.280 of
2005

(From the Order dated 10.05.2005 in Complaint Case No.C-318/1996

of the State Consumer Disputes Redressal
Commission, Delhi)

Universal
Brotherhood Co-op.

Group Housing Society
Ltd.

16/74, Gali No. 2, Joshi Road,

Karol Bagh,

New Delhi ..Appellant

Vs.

Delhi Development Authority

Vikas Bhawan,

INA Market,

New Delhi -110023 .. Respondent

FIRST APPEAL NO.355 of
2005

(From the Order dated 10.05.2005 in Complaint Case No.C-318/1996

of the State Consumer Disputes Redressal
Commission, Delhi)

Delhi Development Authority

Vikas Bhawan,

INA Market,

New Delhi -110023 .. Appellant

Vs.

Universal
Brotherhood Co-op.

Group Housing Society
Ltd.

16/74, Gali No. 2, Joshi Road,

Karol Bagh,

New Delhi ..Respondent

AND

FIRST APPEAL NO.298 of
2005

(From the Order dated 10.05.2005 in Complaint Case No.C-156/1996

of the State Consumer Disputes Redressal
Commission, Delhi)

Rajnigandha
Co-operative

Group Housing Society
Ltd.

Plot No. 4, Sector
-10,

Dwarka

New Delhi-110075 ..Appellant

Vs.

Delhi Development Authority

Vikas Bhawan,

INA Market,

New Delhi -110023 .. Respondent

FIRST APPEAL NO.356 of
2005

(From the Order dated 10.05.2005 in Complaint Case No.C-156/1996

of the State Consumer Disputes Redressal
Commission, Delhi)

Delhi Development Authority

Vikas Bhawan,

INA Market,

New Delhi -110023 .. Appellant

Vs.

Rajnigandha
Co-operative

Group Housing Society
Ltd.

Through Hony President

225-D, Patel Bhawan,

New Delhi-110001 ..Respondent

AND

FIRST APPEAL NO.570 of
2007

(From the Order dated 13.07.2007 in Complaint Case No.C-44/1997

of the State Consumer Disputes Redressal
Commission, Delhi)

Swami Daya Nand Co-operative

Group Housing Society
Ltd.

12-A/1 (First Floor),

Karol Bagh,

New Delhi ..Appellant

Vs.

Delhi Development Authority

Vikas Bhawan,

INA Market,

New Delhi -110023 .. Respondent

BEFORE:

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HONBLE MR. JUSTICE ASHOK BHAN, PRESIDENT

HONBLE MRS. VINEETA RAI, MEMBER

For
the Housing Societies : Mr. Tripat Singh, Advocate

For the DDA in FA No. : Mr. Praduman K. Aggarwal, Advocate 280, 355, 298 and 356 of 200

For the DDA in FA No. : Ms. Manika Tripathy Yadav

570/07 and Mr. Ashutosh Kaushik, Advocates

PRONOUNCED ON: 15.01.2013

O R D E R

ASHOK BHAN, J., PRESIDENT This order shall dispose of all these First Appeals arising from the orders dated 10.05.05 and 13.07.07 passed by the State Consumer Disputes Redressal Commission, Delhi (in short, the State Commission) in complaint case nos.156/96, 318/96 and 44/97 whereby the State Commission has awarded some compensation/interest to the Complainant Societies for not returning the money in time.

First Appeal Nos. 280/05, 298/05 and 570/07 have been filed by the Complainant Societies for enhancement of the compensation while the First Appeal Nos. 355/05 and 356/05 have been filed by the Delhi Development Authority for setting aside the orders of the State Commission. Delhi Development Authority has not filed any appeal against the order dated 13.07.07 passed by the State Commission, Delhi in Complaint case No.44/97.

With the variation of certain facts, point of law involved in these Appeals is the same. To avoid any confusion, we refer to the individual facts of each of the cases as under:-

FACTS:-

FIRST APPEAL NOS. 280/05 & 355/05 (COMPLAINT NO.C-318/96 TITLED UNIVERSAL BROTHERHOOD CO-OPERATIVE GROUP HOUSING SOCIETY LTD. VS. DELHI DEVELOPMENT AUTHORITY Delhi Development Authority (in short, the DDA) vide communication dated 1.10.90 made an offer to the 260 Co-operative Group Housing Societies including the Universal Brotherhood Co-op Group Housing Society (hereinafter to be referred to as the Complainant) to allot the land at the rate

of Rs.975/- per square meter in Dwarka (Papankala), Phase 1 and to deposit Rs.5,00,000/- towards earnest money by 23.10.90. Complainant deposited the sum of Rs.5 lakh on 7.10.90. In the meantime, CWP No.3389/90 and other similar writ petitions were filed before the Honble High Court of Delhi by some co-operative Group Housing Societies challenging the criteria/basis of allotment/guidelines for decision for allotment of land.

DDA issued allotment letter dated 25.1.91 allotting the land measuring 8500 sq. mtrs. in Dwarka, Phase I to the Complainant and asked it to deposit 50% of cost of land, i.e. Rs.41,73,750/-

by 25.03.91. In para 6 of the said allotment letter, it was specifically mentioned that the proposed allotment shall be subject to final decision in CWP No.3389/90 and various other writ petitions pending in Delhi High Court or proceedings pending before any other courts/forum challenging the criteria/basis/guidelines for allotment of land and if need be as a result of the decision therein, the allotment is liable to be reviewed and cancelled. In that event the entire amount received by DDA shall be refunded without any interest and the allottee will have no right or claim for any compensation/damages/ alternative allotment on any grounds whatsoever.

Complainant filed a Civil Writ Petition before the High Court of Delhi against the demand of 50% of cost of land. High Court of Delhi reduced it to 25% and the Complainant accordingly deposited the sum of Rs.20,71,875/- on 21.7.91 with the DDA.

Vide order dated 1.5.91 in Civil Writ Petition No.458/91, the Division Bench of the High Court of Delhi held that the collection of premium being against the rules was illegal and, therefore, the excess amount of Rs.5,00,000/- deposited by the Complainant Society was liable to be adjusted towards the cost of land.

Further, Division Bench of the High Court of Delhi in Kaveri Co-op. Group Housing Society Ltd. Vs. Union of India (CWP no.2885/90) vide order dated 10.5.91 (AIR 1991 Delhi 217) directed that it will be open to the DDA to refund the money to the 260 Societies who had paid the allotment money. It was further directed that DDA shall prepare a fresh seniority list based on the observations made in the said judgment.

Feeling aggrieved against the said order the matter went to the Honble Supreme Court in SLP No.10857/91 in which the Honble Supreme Court passed the interim orders thereby staying the order of the High Court dated 10.5.91. The said SLP was finally decided by the Supreme Court vide order dated 17.9.92. Thereafter, DDA prepared the fresh seniority list and issued fresh offer letters to the Societies.

On 09.10.91, Complainant requested for possession of land and to adjust the interest on the amount of deposit made by it. DDA issued allotment letter dated 22.7.92 to the Complainant. Vide letter dated 6.11.94, DDA demanded Rs.3,63,213/- from the Complainant on account of interest @ 18% p.a. on the belated payment which amount was paid by the Complainant on 9.12.94. By letters dated

14.12.94 and 12.11.96, Complainant requested the DDA for payment of interest @ 18% p.a., i.e. Rs.6,12,070/- on the amount deposited by it. Since the DDA declined to pay the interest on the deposited amount, Complainant, being aggrieved, filed the complaint before the State Commission.

DDA, on being served, entered appearance and filed its written statement contesting the complaint on the ground that as per the judgment of the Honble Delhi High Court in the case of Federation of Co-operative Housing Societies Ltd. Vs. Union of India & Ors. (CWP No.4184/1992 decided on 31.3.93) only those Societies were entitled to interest who had not been re-allotted the land but since the Complainant Society had been re-allotted the land on 3.11.92 and the possession given on 14.1.94 it was not entitled to any interest whatsoever.

The State Commission, after considering the material available on record and going through the evidence led by the parties, came to the conclusion that there was some delay on the part of the DDA in re-allotting the land to the Complainant and therefore, the complainant was entitled for the interest for the period the amount remained with the DDA. Accordingly, State Commission partly allowed the complaint and directed the Respondent to pay the sum of Rs.1,50,000/- towards compensation to the Appellant.

(COMPLAINT CASE NO.- 156/96 TITLED RAJNIGANDHA CO-OPERATIVE GROUP HOUSING SOCIETY LTD. VS. DDA Complainant Society got registered with the Respondent DDA in the year 1983 for allotment of land. On 01.10.90, the DDA offered the land measuring 5500 sq. mtrs. to the Complainant Society at the rate of Rs.975/- per square mtr. in Dwarka, Phase I. Complainant Society deposited Rs.5,00,000/- as earnest money on 05.10.90. In the meantime, CWP No.3389/90 and other similar writ petitions were filed before the Honble High Court of Delhi by some co-operative Group Housing Societies challenging the criteria/basis of allotment/guidelines for decision for allotment of land.

Vide allotment letter dated 25.01.91, DDA confirmed the allotment of land in Dwarka to the Society and asked the society to deposit 50% of total premium of the land upto 25.03.91. In para 6 of the said allotment letter, it was specifically mentioned that the proposed allotment shall be subject to final decision in CWP No.3389/90 and various other writ petitions pending in Delhi High Court or proceedings pending before any other courts/forum challenging the criteria/basis/guidelines for allotment of land and if need be, as a result of the decision therein, the allotment was liable to be reviewed and cancelled. In that event the entire amount received by DDA shall be refunded without any interest and the allottee shall have no right or claim for any compensation/damages/ alternative allotment on any grounds whatsoever. A Civil Writ Petition before the High Court of Delhi against the demand of 50% of cost of land was filed and High Court of Delhi reduced it to 25%. Accordingly, Society deposited the sum of Rs.26,81,259/- on 22.3.91 with the Respondent. However, the allotment made by the Respondent DDA in favour of the Complainant Society was quashed by the High Court of Delhi vide order dated 10.05.91 in Civil Writ Petition No.338/90.

On 03.11.92, Respondent DDA gave fresh offer at the premium of Rs.1650.65 per sq. mtrs asking the complainant Society to deposit 25% of the total amount of premium as well as 10% as earnest money within 60 days. In response, Complainant Society requested the Respondent for payment of

Rs.11,52,750/- as interest on the deposited amount by it. As the Respondent declined to pay the interest on the deposited amount, Complainant, being aggrieved, filed the complaint before the State Commission.

Complaint was resisted on the same ground as in the earlier case. State Commission allowed the complaint directing the DDA to pay Rs.2,00,000/- as compensation to the Complainant Society.

FIRST APPEAL NO. 570/07 (COMPLAINT NO.44/97 TITLED SWAMI DAYA NAND CO-OPERATIVE GROUP HOUSING SOCIETY LTD. VS. DDA On 1.10.90, Delhi Development Authority made an offer to the Complainant Co-operative Group Housing Societies to allot the land at the rate of Rs.975/- per square meter in Dwarka (Papankala), Phase 1 and to deposit Rs.5,00,000/- towards earnest money by 23.10.90. Society deposited the sum of Rs.5 lakh on 9.10.90. In the meantime, CWP No.3389/90 and other similar writ petitions were filed before the Honble High Court of Delhi by some co-operative Group Housing Societies challenging the criteria/basis of allotment/guidelines for decision for allotment of land.

Respondent issued allotment letter dated 25.1.91 asking the Society to deposit 50% of cost of land proposed to be allotted by 25.03.91. In para 6 of the said allotment letter, it was specifically mentioned that the proposed allotment shall be subject to final decision in CWP No.3389/90 and various other writ petitions pending in Delhi High Court or proceedings pending before any other courts/forum challenging the criteria/basis/guidelines for allotment of land and if need be as a result of the decision therein, the allotment was liable to be reviewed and cancelled. In that event the entire amount received by DDA shall be refunded without any interest and the allottee shall have no right or claim for any compensation/damages/ alternative allotment on any grounds whatsoever. A Civil Writ Petitions was filed before the High Court of Delhi against the demand of 50% of cost of land. High Court of Delhi reduced it to 25% and the Society deposited the sum of Rs.21,93,750/- on 22.3.91 with the Respondent.

Vide order dated 1.5.91 in Civil Writ Petition No.458/91, the Division Bench of the High Court of Delhi held that the collection of premium being against the rules was illegal and, therefore, the excess amount of Rs.5,00,000/- deposited by the Appellant was liable to be adjusted towards the cost of land.

Further, Division Bench of the High Court of Delhi in Kaveri Co-op. Group Housing Society Ltd. Vs. Union of India vide order dated 10.5.91 (AIR 1991 Delhi 217) directed that it will be open to the Respondent DDA to refund the money to the 260 Societies who had paid the allotment money. DDA was further directed to prepare a fresh seniority list as per observations made in the said judgment.

Since the deposited amount of Rs.26,93,750/-

was not refunded by the DDA, the Society sought refund of the amount along with interest. DDA sent a cheque of Rs.5,38,750/-

to the Society on 20.12.93 and subsequently the same amount was refunded in four equal installments on 31.01.94, 08.03.94 and on 26.04.94. Society claimed the interest over the entire amount for the period it remained with the Respondent, DDA. Respondent sent a cheque of Rs.1,73,126/- towards the interest to the Society on 05.06.96. Complainant, being aggrieved, filed the complaint before the State Commission claiming interest of Rs.12,09,536/- and compensation of Rs.1,26,000/-.

Respondent DDA, on being served, entered appearance and filed its written statement contesting the complaint on the ground that the question of payment of interest to the Societies was adjudicated by the Honble Delhi High Court in March, 1993 in the case of Federation of Co-operative Housing Societies Ltd. Vs. Union of India & Ors. (CWP No.4184/1992) and the interest had been paid to the Socieity as per the directions of the Honble High Court of Delhi in the said case.

The State Commission, after considering the material available on record and going through the evidence led by the parties, came to the conclusion that the refund was not made in one go but was given in four equal installments as a result of which the Society suffered financial loss by way of interest. Accordingly, State Commission partly allowed the complaint in the following manner:-

- (i) DDA shall pay interest @ 9% w.e.f. 1.2.94 to 07.3.94 on the balance amount i.e. original deposit less amount paid by way of Ist Installment.
- (ii) Similarly DDA shall pay interest @ 9% from 09.3.94 to 25.04.94 on the balance amount after adjusting the amount of installments paid by it between 31.1.94 and 08.05.94.
- (iii) Besides this, OP DDA shall pay Rs.10,000/- as costs.

SUBMISSIONS. Counsel appearing for the Complainant Societies contends that the State Commission has committed a grave error in awarding lump-sum compensation of Rs.1,50,000/- and Rs.2,00,00/- in FA No.280/05 and in FA No. 298/05 respectively and interest @ 9% p.a. for the limited period in FA No. 570/07 as the State Commission was bound to follow its own judgment in the case Spartacus Co-operative Group Housing Society Ltd. Vs. DDA {(1995) 1 CPR 325} wherein considering the orders of the Division Bench of Delhi High Court dated 1.5.91 and 10.5.91, the State Commission had directed the DDA to pay interest on the amount deposited by the Society at the rate of 15% from the date of deposit till the payment.

That the First Appeal No.4/99 filed by the DDA against the said order of the State Commission was dismissed by this Commission on 27.10.99. SLP No.12600/1999 filed by the DDA against the order

of the National Commission was also dismissed by the Supreme Court directing the DDA to pay the interest @ 15%. That in the present cases also, DDA was liable to pay interest @ 15% p.a. from the respective dates of deposit till realisation.

He further submitted that the DDA has allowed interest on the amounts deposited by similarly situated Societies as the Complainants in these cases who were allotted land subsequent to the orders of the Division Bench of the High Court of Delhi in writ Petition quashing the earlier allotments.

He invited our attention to an order dated 19.11.96 passed by the State Commission, Delhi in Complaint Case No. 248/94 titled as Prabhavi Group Housing Society Vs. DDA wherein DDA allotted land to the said society and also paid interest on the amount deposited initially and the amount of interest was also adjusted in the total cost of the land payable by the Society. He has also pointed out that in Swami Daya Nand Co-operative Group Housing Societys case (Appellant in First Appeal No.570/07) as well, the DDA had paid interest (though on a lower rate) and the re-allotted the land after cancellation.

He further submits that the contention of the DDA relying upon the decision in Ferderations case that only those Societies were entitled to interest who had not been re-allotted the land, is mis-placed. In the said judgment, the challenge was only to the fixation of pre-determined rate of land for Dwarka Project and validity of Rule 41A of Delhi Co-operative Society Rules.

It was next contended by him that in pursuance to the order dated 17.1.2000 passed by the Honble Supreme Court in SLP No. 12600/98 titled, DDA Vs. Navjyoti Co-operative Group Housing Society, DDA had paid interest to the Shiv Shakhti Co-operative Group Housing Society Ltd. and Khosla Compressor Staff Co-operative Group Housing Society Ltd. which were also re-allotted the land. The Honble Supreme Court dismissed the said Special Leave Petitions both on the ground of delay and merit with the observations that the DDA was required to pay interest @ 15% p.a. That the Complainant Societies had been deprived of use/benefit of huge amount retained by DDA for a long time and it is liable to compensate for the same. That there is no distinction between the facts and circumstances of the present cases and the facts of the Navjyotis case (Supra) and DDA is thus bound to pay interest @ 15% p.a. even though the societies were re-allotted the land.

As against this, Shri P.K. Aggarwal, Ld. Counsel appearing for the DDA in First Appeals Nos. 280, 355, 298 and 356 of 2005 submits that in some cases the interest was paid to the Societies by the DDA in terms of the orders passed by the State Commission, National Commission and the Honble Supreme Court but the re-allotment of the land was made to them at a higher price. That in Navjyotis case (supra) the land was not re-allotted. That in Prabhavis Co-operative Group Housing Societys case, the deposited amount was refunded along with interest in terms of the order of the High Court. The said Society again applied for allotment of land which was allotted @ Rs.2,236.97 per sq. mtr. whereas the Universal Brotherhood Co-op. Group Housing Society Ltd. (Appellant in F.A.No. 280/05) and Rajniganda Co-operative Group Housing Society Ltd. (Appellant in

F.A.No.298/05) were allotted land at the original rate of Rs.1650.65 per sq. mtr. Similarly, in the Khosla Compressor Co-operative Group Housing Societys case, the deposited amount was refunded with interest but when the said Society again applied for allotment of land, the land was allotted to the said Society @ Rs.1,861.65 per sq. mt. Even in the case of Swami Daya Nand Co-operative Group Housing Society, the land was re-allotted @ Rs.2,033.61 per sq. mtr.

after refunding the deposited amount with interest.

He further submits that there was no deficiency in service on the part of the DDA as the offer of allotment was made to the Societies on 1.10.90 and the allotment letter was issued to them on 25.1.91. Some of the Societies approached the Division Bench of High Court of Delhi challenging the guidelines for allotment. The Division Bench of the High Court of Delhi vide order dated 10.05.91 quashed the allotment made to the Societies and directed the DDA to refund the money and prepare the fresh seniority list. The matter was settled before the Honble Supreme Court and fresh letter of offers were sent to the Societies. The circumstances were out of control of the DDA and it cannot be held liable for the delay in re-allotment of land.

Relying upon the judgment of the Honble Supreme Court in the case of Bangalore Development Authority Vs. Syndicate Bank (2007) 6 SCC 711, he further submits that the DDA was not liable to pay any interest to the Societies as the time was not the essence of the Contract. That on re-allotment of land at the price prevailing at the time of initial allotment, the DDA was not liable to pay any interest.

Ms. Manika Tripathy Pandey, Ld. Counsel appearing for the DDA in FA No.570/07 submits that the interest was to be paid to only those Societies to whom no re-allotment of land had been made. The Daya Nand Co-operative Group Housing Society (Appellant in F.A.No.570/07) was refunded the deposited amount along with interest after the quashing of allotment by the Division Bench of High Court of Delhi and the land was re-allotted to them @ Rs.2,033.61 per sq. mtrs. instead of original rate of Rs.1650.65 per sq. mtr. Since, the Society was refunded the initial deposited amount along with interest, no further interest is payable by the DDA. She further contends that in para 6 of the allotment letter dated 25.01.91 it was specifically mentioned that in case of refund of money the allottee shall have no right or claim for interest.

FINDINGS It is not disputed before us that offer of allotment of land in Dwarka was made by the DDA to the Societies on 1.10.90 and the allotment letter was issued on 25.01.91. Societies filed the writ petitions in the High Court of Delhi challenging the guidelines for allotment. Division Bench of the High Court of Delhi vide order dated 10.05.91 quashed the allotments to the Societies and directed the DDA to refund the money and prepare fresh seniority list. After the decision of the Division Bench the amounts deposited by the Societies were refunded to them by the DDA as in the case of Daya Nand Co-operative Group Housing Society Ltd. (Appellant in First Appeal No.570/07) along with interest. On an application filed by them subsequently the land was re-allotted to them by the DDA. Some of the Societies like the Universal Brotherhood Co-operative Group Housing Society (Appellant in FA No.280/05) and Rajnigandha Co-operative Group Housing Society Ltd. (Appellant in F.A.No.298/05) were not refunded the deposited amount and allotted the land in the

year 1992 at the original rate. The Societies to whom the interest had been paid the land was allotted at a higher rate whereas the Societies to whom the deposited money had not been refunded, the land was allotted at the original price. The Honble Supreme Court in the Bangalore Development Authority's case (Supra) has held that where the land is allotted at the price prevailing at the time of initial allotment, the Authority concerned is not liable to pay interest. It has been observed as under:-

13. As already noticed, where the grievance is one of delay in delivery of possession and the Development Authority delivers the house during the pendency of the complaint at the agreed price, and such delivery is accepted by the allottee-complainant, the question of awarding any interest on the price paid by him from the date of deposit to date of delivery of possession does not arise. The allottee who had the benefit of appreciation of price of the house, is not entitled to interest on the price paid.

In this case, the 11 houses were delivered in 1977 at the agreed price (Rs.5.5 lacs per corner HIG House and Rs.4.75 lacs per other HIG Houses). In view of it, the order of the Commission awarding interest @ 18% p.a. on the price of the houses is unsustainable and liable to be set aside.

In Federations case (Supra), the Division Bench of the High Court of Delhi had directed the DDA to pay the interest from the date of demand of refund by the Society. It was specifically held in the said judgment that the interest would be payable only in the cases where re-allotment of land had not been made. In the cases where the Societies were re-allotted the land, interest was not required to be paid. Relevant observations of the High Court of Delhi in Federations case read as under:-

It is no doubt true that the payment of interest was ordered in the case of Sriniketan Co-op. Society's case (Supra) but the important distinction between the present case and that of Sriniketans case is that here in the letters of allotment itself it was stated that on the allotment being cancelled no interest would be payable. Therefore, there can be no claim of interest by the societies w.e.f. the date of their deposit. Furthermore, the Supreme Court contemplated interest not being awarded to those societies who were re-allotted land. Before us there is no society who had deposited the money and has not been re-allotted land. It would, however, be just and fair that if a demand for refund is made on the DDA then the DDA, if it does not re-pay the money within a reasonable time, should be bound to pay some interest. We are informed that some of the co-operative Societies had written to the DDA for refund of money. If the DDA did not refund the money on its own then it would be unfair and it would not be entitled to take benefit of the aforesaid clause 6 and escape the liability to pay interest when a demand for refund of the money is specifically made on it by a co-operative society. In such a case, in our opinion the DDA would be liable to pay interest @ 12% p.a., which rate was awarded by the Supreme Court in Sriniketan Co-operative Society's case (supra) w.e.f the date the notice of demand was served on the DDA till the date of payment. This payment of interest will only be made to those societies to whom no re-allotment of land has been made. (Emphasis supplied) We

agree with the submission made by the Ld. Counsel appearing for the DDA that since the Complainant Societies had been re-allotted the land, they were not entitled to the payment of interest. In the case of Daya Nand Co-operative Group Housing Society Ltd. to whom the interest had been paid, the land was re-allotted at the higher price than the initial offer made to them.

Moreover, the DDA has accepted the order passed by the State Commission in complaint case No.C-44/97. In the absence of any appeal by the DDA, the order passed by the State Commission in complaint case No. C-44/97 cannot be interfered. In none of the cases cited by the Complainants the point as to whether the interest is to be paid to the Societies to whom the land had been allotted, has been considered. In view of this, the ratio of those judgments would not be applicable to the facts of the present cases.

The First Appeal Nos. 280/05 and 298/05 filed by the Complainant Societies seeking enhancement of the compensation are dismissed in view of the judgments of the Supreme Court in Bangalore Development Authoritys case (Supra) and the Division Bench of High Court of Delhi in Federations case(Supra).

In view of what has been stated above, the First Appeal Nos. 355/05 and 356/05 filed by the DDA for setting aside the orders passed by the State Commission are liable to be accepted. But in the peculiar facts and circumstances of these cases, direction issued by the State Commission to pay lump-sum compensation of Rs.1,50,000/- in FA No.280/05 and Rs.2,00,000/- in FA No. 298/05 is maintained as the DDA had been taking inconsistent stand. DDA had paid interest to some of the Societies to whom the land was re-allotted whereas the Complainant Societies had not been paid the interest though allotted the land at the original price. Even after paying the interest and re-allotment of land, DDA had charged different prices from the different Societies as is evident from the orders passed by the State Commission. From Daya Nand Co-op. Group Housing Society Ltd., it had charged Rs.2,033.61 per sq. mtr. whereas from Khosla Compressor Co-op. Group Housing Society Ltd., DDA had charged Rs.1,861.65 per sq. mtr. These Societies had been charged higher rate per square metre as the DDA had paid the interest to them on the deposited amount. Universal Brotherhood Co-op. Group Housing Society Ltd. and the Rajnigandha Co-operative Group Housing Society Ltd. (Appellants in FA No.280/05 and 295/05 respectively) were allotted the land @ Rs.1650.65 per sq. mtr. on the ground that no interest had been paid to them. The nexus and the rationale of charging different prices from the Societies to whom the land was given at a lower price but no interest was paid and charging of higher price because the interest had been paid to those Societies, has not been explained.

In view of the reasons stated above, although in principle, we are deciding that the DDA is not liable to pay interest on re-allotment of land at the original rate but decline to interfere with the direction given by the State Commission to pay the lump-sum compensation of Rs.1,50,000/- in FA No.280/05 and Rs.2,00,000/- in FA No.298/05 as the DDA has been taking adhoc and inconsistent stand thereby causing a heart burning to the Complainant Societies. The First Appeals are disposed of in the above manner. No order as to costs.

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(ASHOK BHAN J.) PRESIDENT

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(VINEETA RAI) MEMBER